

TENTATIVE RULING FOR APRIL 28, 2026

Department R12 - Judge Kory Mathewson

Devri-Jo Murakami v. Jameson REI Group, LLC, et al – CIVSB2321194

Motion: Motion to Compel Further Responses to Request for Production, Set One (Nos. 1-4)

Movant: Plaintiff, Devri-Jo Murakami

Respondent: Defendants, Jameson REI Group

RULING: Motion to Compel Further Responses to Request for Production, Set One (Nos. 1-4) is GRANTED. Sanctions in the amount of \$1,160.00 is GRANTED. Verified responses without objections and sanctions due within 30 days.

Plaintiff - to provide Order(s) and give Notice.

Plaintiff served requests for production on September 5, 2025, seeking documents related to all 100+ BHT trust deeds that went into default. Defendant Jameson served objection-only responses on October 10, 2025. (Declaration of Jeffrey Wilens, ¶ 5.) The parties met and conferred on October 30, 2025, at which time Defendant offered to produce documents concerning the nine of the 100+ similar transactions. Those documents were produced on November 12, 2025, but the supplemental written responses were produced November 25, 2025. Plaintiff reached out to confirm nothing else was going to be produced but Defendant's counsel did not substantively respond. (Declaration of Jeffrey Wilens, ¶ 6.) As a result, Plaintiff was forced to bring this instant motion.

Defendants filed a late opposition on April 24, 2026. Within the Opposition, Defendant did not address any reason(s) for the late filing. Consequently, the court exercises its discretion to not consider the late Opposition filing. Plaintiff's motion to compel further responses to Request for Production, Set One (Nos. 1-4), is granted. Sanctions are awarded in a reduced amount of \$1,160.00.

Dated: April 28, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR APRIL 28, 2026

Department R12 - Judge Kory Mathewson

Isabelle Flores v. William Anthony Smith – CIVSB2313499

Motion: Motion to Bifurcate

Movant: Defendant William A. Smith

Respondent: Plaintiff Isabelle Flores

RULING: The court GRANTS, in part, Defendant's Motion to Bifurcate as to the amount of punitive damages and his financial condition being tried in a second phase of trial, AND DENIES, in part, the motion as to separating the allegations of driving while under the influence from the first phase of trial, covering liability and compensatory damages. The second phase of trial shall relate to the amount of punitive damages and his financial condition, if Plaintiff proves in the first phase of trial by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.

Separately, the court DENIES, without prejudice, Defendant's request to stay the civil action as Defendant failed to file the appropriate motion and Defendant has made the request in the Reply, not allowing Plaintiff to respond to it.

Defendant - to provide Order(s) and give Notice.

The court grants, in part, Defendant's Motion to Bifurcate as to the amount of punitive damages and his financial condition being tried in a second phase of trial but denies, in part, the motion as to separating the allegations of driving while under the influence from the first phase of trial, covering liability and compensatory damages.

Defendant shows he is entitled to bifurcate trial pertaining to the amount of punitive damages and his financial information, until the jury determines that Plaintiff is entitled to punitive damages. The court shall "preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294." (Civ. Code, § 3295, subd. (d).) Although not cited by either party, the Court notes that in *Holdgrafer, supra*, 160 Cal.App.4th 907, 919, the Court of Appeal stated that: "While the statute refers only to evidence of the defendant's financial condition, in practice bifurcation under this section means that all evidence relating to the *amount* of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is *entitled* to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages." (Emphasis in original.)

Next, malice based on the alleged DUI is intertwined with the issue of liability because this evidence may be relevant to the issue of whether Defendant acted with malice. Though not cited by either party, in *Taylor v. Superior Court (Clair William Stille)* (1979) 24 Cal.3d 890, 892 ("Taylor"), the California Supreme Court stated: "the act of operating a motor vehicle while intoxicated may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." And "[o]ne who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter

must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents.” (*Id.*, at p. 897.)¹ The jury then should have the opportunity to fully consider the circumstances of the incident, including the alleged intoxication, to determine if Defendant’s actions constitute malice. (*Medo, supra*, 205 Cal.App.3d at p. 68 [“In order for a jury to evaluate the oppression, fraud or malice in the conduct giving rise to liability in the case, it must consider the conduct giving rise to liability.”]; *Colucci v. T-Mobile USA, Inc.* (2020) 48 Cal.App.5th 442, 450-451 [“A jury may award punitive damages in a tort action ‘where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.’ (Civ. Code, § 3294, subd. (a).) On appeal, a jury’s decision to award punitive damages must be upheld if it is supported by substantial evidence. [Citation.]”].)

Moreover, ““Prejudice” as contemplated by [Evidence Code] section 352 is not so sweeping as to include any evidence the opponent finds inconvenient. Evidence is not prejudicial, as that term is used in a section 352 context, merely because it undermines the opponent’s position or shores up that of the proponent. ... The prejudice that section 352 “is designed to avoid is not the prejudice or damage to a defense that naturally flows from relevant, highly probative evidence.” [Citations.] ‘Rather, the statute uses the word in its etymological sense of “prejudging” a person or cause on the basis of extraneous factors. [Citation.]’ [Citation.]” [Citation] ...” (*People v. Doolin* (2009) 45 Cal.4th 390, 438-439.)

Here, Plaintiff alleges that Defendant “drove dangerously ... while under the influence of alcohol and other intoxicants, ran a red traffic light, and caused a collision with the vehicle driven by Plaintiff.” (Compl., at ¶ 11.) As such, the jury should hear evidence regarding the full circumstances of the crash, which involves the alleged intoxication that Plaintiff asserts impaired his perception, his reaction, and his overall driving ability. (See Opp. at p. 2:19-21.)

Lastly, Defendant requests if the Court is inclined to permit Plaintiff to introduce evidence relating to the alleged intoxication, DUI arrest, or pending criminal case to pursue punitive damages, that this civil action be continued until the criminal matter is resolved.

A party or witness in a civil proceeding ‘may be required either to waive the privilege or accept the civil consequences of silence if he or she does exercise it. [Citations.]’ [Citation.]” (*Fuller v. Superior Court (IPC International Corporation)* (2001) 87 Cal.App.4th 299, 305-306.) Defendant also makes this constitutional argument for the first time on Reply. “[P]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration

¹ Note that the definition of malice has changed since *Taylor*. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1212 [“While the court in *Taylor, supra*, 24 Cal.3d 890, held that punitive damages may be assessed where the defendant was driving under the influence of alcohol at the time of the collision, despicable conduct was not a requirement when *Taylor* was decided.”]) “‘Malice’ [now] means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1); *Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715 [“Despicable conduct is conduct that is ‘... so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people’” (Internal quotations and citations omitted)].)

would deprive the respondent of an opportunity to counter the argument.”” (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538, quoting *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453.) Accordingly, the court denies this request, without prejudice, to stay the civil action because Defendant has not brought the appropriate motion for such consideration and Defendant has made the request within the Reply, giving no opportunity for Plaintiff to respond to it.

Dated: April 28, 2026

Judge Kory Mathewson